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|            |                                                            | <p>to be filed no later than nine (9) court days before the continued hearing date of <b>July 28, 2026, at 10:00 AM.</b></p> <p>Moving party to give notice.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                  |
| <b>106</b> | <p><b>Safavi vs. Ghadiri</b></p> <p><b>25-01522424</b></p> | <p>1. Motion to Expunge Lis Pendens</p> <p>2. Case Management Conference</p> <p>Defendant, Nasrin Ghadiri (“Defendant”), moves for an order expunging the Notice of Pendency of Action (“Lis Pendens”) recorded by Plaintiff and approved on April 14, 2026.</p> <p>Opposition was filed under ROA 74, but the opposition does not include an analysis of the merits. Nevertheless, the Court has reviewed this case on the merits.</p> <p>Initially, Defendant filed a proof of service indicating that Plaintiff was served with the moving papers by electronic service on April 20, 2026. Both Plaintiff and Defendant are self-represented.</p> <p>California Rules of Court, rule 2.253(b)(2) provides that “[s]elf-represented parties or other self-represented persons are exempt from any mandatory electronic filing and service requirements adopted by courts under this rule and Code of Civil Procedure section 1010.6.” Additionally, “[i]n civil cases involving both represented and self-represented parties or other persons, represented parties or other persons may be required to file and serve documents electronically; however, in these cases, each self-represented party or other person is to file, serve, and be served with documents by non-electronic means unless the self-represented party or other person affirmatively agrees otherwise.” (California Rules of Court, rule 2.253(b)(3), emphasis added.)</p> <p>“An unrepresented party may consent to receive electronic service.” (Code Civ. Proc. §1010.6(c)(2).) Express consent to electronic service may be given by either (1) serving a notice on all parties and filing the</p> |

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|  |  | <p>notice with the court, or (2) “[m]anifesting affirmative consent through electronic means with the court or the court’s electronic filing service provider, and concurrently providing the party’s electronic address with that consent for the purpose of receiving electronic service. The act of electronic filing shall not be construed as express consent.” (Code Civ. Proc. §1010.6(c)(3)(i)-(ii).) California Rules of Court, rule 2.251(b) sets forth similar ways in which a party may agree to accept electronic service.</p> <p>Defendant’s declaration provides that both parties agreed to electronic service. (Declaration of Nasrin Ghadiri, ¶ 2.) Plaintiff stated in Court that the parties have agreed to electronic service. As such, the Court will consider this motion.</p> <p>Defendant is ORDERED to comply with Code of Civil Procedure section 1010.6(c)(3) and California Rules of Court, rule 2.251(b) to establish express consent for electronic service.</p> <p>Merits</p> <p>Defendant contends that the notice of pendency of action (“lis pendens”) must be expunged under Code of Civil Procedure section 405.31 because the Complaint does not assert any claim affecting title to or possession of real property that is the subject of the lis pendens, and thus, that the Complaint does not contain a “real property claim” within the meaning of Code of Civil Procedure section 405.4.</p> <p>“ ‘A lis pendens is a recorded document giving constructive notice that an action has been filed affecting title to or right to possession of the real property described in the notice.’ [Citation.]” (Kirkeby v. Superior Court (2004) 33 Cal.4th 642, 647 (“Kirkeby”).) “At any time after notice of pendency of action has been recorded, any party, or any nonparty with an interest in the real property affected thereby, may apply to the court in which the action is pending to expunge the notice. . . . Evidence or declarations may be filed with the motion to</p> |
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|  | <p>expunge the notice. The court may permit evidence to be received in the form of oral testimony and may make any orders it deems just to provide for discovery by any party affected by a motion to expunge the notice. The claimant shall have the burden of proof under Sections 405.31 and 405.32.” (Code Civ. Proc. § 405.30.)</p> <p>A lis pendens may be expunged if the action does not contain a real property claim or the claimant fails to establish the probable validity of the real property claim. (De Martini v. Superior Court (2024) 98 Cal.App.5th 1269, 1275.)</p> <p>For a motion to expunge lis pendens, the court goes through a two-step analysis. First, the court looks to see if the complaint contains a property claim. This requires plaintiff to prove the existence of a real property claim based on the allegations in the complaint. (Code Civ. Proc. § 405.31; Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1149.) This analysis is akin to what is reviewed on a demurrer, and the court is to consider only evidence that is judicially noticeable and assumes facts alleged in the complaint to be true. (Park 100 Investment Group II, LLC v. Ryan (2009) 180 Cal.App.4th 795, 808-809; BGJ Associates v. Superior Court (1999) 75 Cal.App.4th 952, 956, 958.) An action that affects ownership of disputed property is a proper action for a lis pendens notice, as is an action that would affect or impair the owner’s right of possession of real property. (Urez Corp. v. Superior Court (1987) 190 Cal.App.3d 1141, 1145.) An action for money damages alone will not support a lis pendens. (Ibid.)</p> <p>Code of Civil Procedure section 405.31 provides, in pertinent part: “the court shall order the notice expunged if the court finds that the pleading on which the notice is based does not contain a real property claim. The court shall not order an undertaking to be given as a condition of expunging the notice where the court finds the pleading does not contain a real property claim.” The burden is on the party opposing a motion to expunge lis pendens to show the existence of a real property claim.</p> |
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(Code Civ. Proc. § 405.30; Kirkeby, supra, 33 Cal.4th at p. 647.)

Second, the court evaluates the merits of the claim, which involves an evidentiary hearing. (Kirkeby, supra, 33 Cal.4th at p. 651; BGJ, supra, 75 Cal.App.4th at pp. 956-957.) Under Code of Civil Procedure section 405.32, a claimant must establish the probable validity of the real property claim by a preponderance of the evidence. (Code Civ. Proc. § 405.32; Howard S. Wright Const. Co. v. Superior Court (2003) 106 Cal.App.4th 314, 317.)

At issue is the first step. The Complaint asserts causes of action for breach of contract and promissory and constructive fraud and seeks only money damages. It is alleged that the parties entered into an oral agreement whereby Plaintiff agreed to perform a complete renovation of Defendant's residential property located in Mission Viejo, California in exchange for a promise to sell the subject property immediately after renovation, obtain a new loan, purchase another house for renovation, and transfer of one-half ownership of that new property to the Plaintiff. (Complaint, Attachment BC-1 at p. 1, Attachment BC-2 at p. 1, Attachment BC-4.)

The allegations of the Complaint indicate that Plaintiff does not have an ownership or possessory interest in the Mission Viejo property, and that this action does not affect ownership of the Mission Viejo property, or impair Plaintiff's right of possession of the Mission Viejo property. Instead, Plaintiff alleges a promise to sell the Mission Viejo property and purchase a new property from which one-half ownership of the new property would be transferred to Plaintiff.

Additionally, Plaintiff has not opposed the motion and has not proven the existence of a real property claim based on the allegations in the Complaint.

Based on the foregoing, the Complaint does not contain a "real property claim" within the meaning of Code of Civil Procedure section 405.4. Defendant's motion to

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|     |                                                                        | <p>expunge pendency of action (“lis pendens”) is GRANTED.</p> <p>Court to give notice</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                 |
| 107 | <p><b>Lorenzini vs. Revolashion, LLC</b></p> <p><b>26-01547153</b></p> | <p>Motion to Quash Service of Summons</p> <p>Defendants Ilona Alidzaeva and Alexandre Lamothe (“Defendants”) move for an order quashing service of summons and dismissing action for lack of personal jurisdiction as to Revolashion, LLC (“Revolashion”) or, in the alternative, staying or dismissing the action based on forum non conveniens.</p> <p>To the extent Defendants’ Motion is made on behalf of Revolashion, it is improper. Defendants filed their Motion in pro per and they cannot represent the entity defendant. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145 [“a corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney.”]; see also Caressa Camille, Inc. v. Alcoholic Beverage Control Appeals Bd. (2002) 99 Cal.App.4th 1094, 1101-1102 [explaining that qualifications of the human representing an entity is of vital judicial concern and “‘the court is entitled to expect to be aided in resolution of the issues by presentation of the cause through qualified professionals rather than a lay person.’ ”].)</p> <p>To the extent the Motion seeks to quash service on the individual defendants for lack of personal jurisdiction, the Motion also lacks merit. Defendants concede that they reside in this state. Further, they filed an Answer to the Complaint on May 21, 2026, which constitutes a general appearance and makes them subject to this Court’s personal jurisdiction. (Fireman’s Fund Ins. Co. v. Sparks Construction, Inc. (2004) 114 Cal.App.4th 1135, 1145.)</p> |